

Smt. Nadra Khatoon v. State of U.P. (Clause 6.9 inflated-bill representation)

Allahabad High Court · Division Bench · 10 January 2022 · Writ-C No. 35490 of 2021 · **Writ disposed; respondent no. 3 to decide the pending Clause 6.9 representation within 7 days.**

HEADNOTE

The petitioner, holding 2 kW connections, challenged an alleged inflated bill of Rs. 1,76,763.22 after representing it under Clause 6.9 of the U.P. Electricity Supply Code, 2005. Licensee counsel assured a decision within a week. The Division Bench disposed of the writ by directing respondent no. 3 to decide that representation within seven days, without examining the bill.

FACTUAL SUMMARY

Smt. Nadra Khatoon held 2 kW electricity connections and received a bill of Rs. 1,76,763.22, which she treated as inflated. She had already represented the bill to the third respondent under Clause 6.9 of the U.P. Electricity Supply Code, 2005. On the writ being heard, counsel for respondents 2 and 3 assured the Court that the representation would be decided within a week. The Division Bench recorded that assurance and disposed of the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

billing-complaint representation

HOLDING

Where a consumer has already represented an alleged inflated energy bill under Clause 6.9, the High Court may dispose of the writ by directing the designated officer to decide that pending representation within a fixed short period, without adjudicating the bill on merits. ¶ 1

PRINCIPLE TAGS

clause-6.9-representation-time-bound-decision A pending Clause 6.9 billing representation may be closed at the writ stage by a time-bound direction to the designated officer to decide it, once licensee counsel undertakes a prompt decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF RS. 1,76,763.22 WAS INFLATED OR PAYABLE

The Court directed decision of the pending Clause 6.9 representation and did not examine the bill. ¶ 1